

Below is the full text of Resolution No. 11, Series of 2024, as requested from the provided document:

RESOLUTION NO. 11, SERIES OF 2024

A RESOLUTION ENACTING BARANGAY TAX ORDINANCE NO. 11 SERIES OF 2024 AN ORDINANCE COLLECTING OR CHARGING FEES ON THE ISSUANCE OF BARANGAY CLEARANCE BARANGAY CERTIFICATION, AGREEMENTS AND THE USE OF THE BARANGAY FACILITIES TO ALL RESIDENT S AND NON RESIDENT OF THE BARANGAY.

WHEREAS, ONE OF THE POWERS AND DUTIES OF THE SANGGUNIANG BARANGAY IS TO ENACT TAX AND REVENUE ORDINANCES IN THE EXERCISE OF TAXING POWER AS PROVIDED UNDER SECTION 152 OF THE REPUBLIC ACT NO. 7160 KNOWN AS THE LOCAL GOVERNMENT CODE OF 1981.

WHEREAS, BARANGAYS MAY COLLECT REASONABLE FEES OR CHARGES FOR THE SERVICES RENDERED IN CONNECTION WITH THE REGULATION OR THE USE OF BARANGAY-OWNED PROPERTIES OR SERVICE FACILITIES WHICH ARE CONSTRUCTED WITH THE GOVERNMENT FUNDS SUCH AS MULTIPURPOSE HALLS, BASKETBALL COURTS AND OTHER SIMILAR FACILITIES.

WHEREAS, NO CITIES MAY ISSUE ANY LICENSE OR PERMIT FOR ANY BUILDING CONSTRUCTIONS OR BUSINESS OR ACTIVITIES UNLESS A CLEARANCE IS FIRST OBTAINED FROM THE BARANGAY WHERE SUCH CONSTRUCTIONS OF THE BUILDING OR BUSINESS ACTIVITY IS LOCATED AND CONDUCTED.

WHEREAS, ENACTMENT OF AN ORDINANCE REGULATING THE COLLECTION OF THE FEES ON THE ISSUANCE OF BARANGAY CLEARNCES, CERTIFICATIONS, AGREEMENTS AND PERMITS AND IMPOSING OF CONSIDERABLE FEES FOR THE USE AND SERVICE RENDERED OF BARANGAY OWNED PROPERTIES WILL RESULT FOR AN INTERNAL GENERATION OF INCOME THAT SHALL BENEFITS THE BARANGAY CONSTITUENTS AND BARANGAY SAN ISIDRO AS A WHOLE.

NOW THEREFORE, UPON UNANIMOUS ACCLAMATION OF ALL MEMBERS PRESENT, AND DULY SECONDED THE SAME, IT WAS.

RESOLVED TO ENACT THE FOLLOWING ORDINANCE;

BARANGAY TAX ORDINANCE NO. 1, SERIES OF 2024

"AN ORDINANCE REGULATING THE COLLECTION OF THE BARANGAY SAN ISIDRO CALLED THE BARANGAY SAN ISIDRO TAX ORDINANCE FOR THE COLLECTION OF FEES ON THE ISSUANCE OF BARANGAY CLEARANCES, CERTIFICATION, AGREEMENT AND BARANGAY

PERMIT, KATARUNGANG PAMBARANGAY AND THE RENTAL FEE COLLECTION FOR THE USE OF BARANGAY COVERED COURT."

BE IT ORDAINED BY THE SANGGUNIANG BARANGAY OF BARANGAY SAN ISIDRO THAT;

SECTION 1. THIS ORDINANCE SHALL BE KNOWN AS THE "THE BARANGAY SAN ISIDRO TAX ORDINANCE FOR THE COLLECTION OF FEES ON THE ISSUANCE OF THE BARANGAY CLEARANCE, CERTIFICATION, AGREEMENTS AND BARANGAY PERMIT, KATARUNGANG PAMBARANGY FEES AND THE RENTAL FEE COLLECTION FOR THE USE OF BARANGAY COVERED COURT.

SECTION 2. THAT THERE SHALL BE FEES OR CHARGES TO BE COLLECTED BY THE BARANGAY GOVERNMENT TO ALL RESIDENTS AND NON-RESIDENTS OF BARANGAY SAN ISIDRO WHO ARE DOING BUSINESS OR WHO INTEND TO DO BUSINESS WITHIN THE BARANGAY UPON THEIR REQUEST FOR A BARANGAY CLEARANCE OR BARANGAY CERTIFICATION.

SECTION 3. DEFINITION OF TERMS THE FOLLOWING TERMS SHALL BE DEFINED:

A. OBLIGATION BARANGAY CLEARANCE REFERS TO THE FACT THAT THE CONCERNED PERSON IS CLEARED OF ALL THE OBLIGATIONS HE MAY HAVE INCURRED IN THE BARANGAY, AS A RESULT OF FINES CONTRIBUTIONS AND OTHER FINANCIAL LIABILITIES LAWFULLY IMPOSED BY THE BARANGAY, OR BY THE LUPON TAGAPAMAYAPA

B. BUSINESS BARANGAY CLEARANCE-REFERS TO THE FACT THAT THE APPLICANT IS ALLOWED TO ENGAGE IN BUSINESS IN THE BARANGAY PURSUANT TO BARANGAY ORDINANCE, EXISTING LAW AND SUBJECT TO THE COMPLIANCE OF THE REQUIREMENTS COMPELLED BY THE CITY ORDINANCE.

C. WATER/ELECTRIC CONNECTION BARANGAY CLEARANCE REFERS TO THE FACT THAT THE APPLICANT FOR WATER OR ELECTRIC CONNECTION HAS COMPLIED WITH THE REQUIREMENTS PRIOR TO THE CONNECTION FOR WATER OR ELECTRICITY, AND THAT HE IS CLEARED FROM SUCH REQUIREMENTS IMPOSED BY LAWFUL AUTHORITIES.

D. BUILDING BARANGAY CLEARANCE-REFERS TO THE FACT THAT THE APPLICANT FOR BUILDING PERMIT HAS COMPLIED WITH THE ZONING ORDINANCE OF THE MUNICIPALITY, AND THAT THE BUILDING TO BE CONSTRUCTED DOES NOT ENDANGER THE HEALTH OF THE NEIGHBORING RESIDENT OR DESTROY THE ENVIRONMENT IMPACT OF SOCIETY

E. FENCE BARANGAY ORDINANCE REFERS TO THE FACT THAT THE APPLICANT FOR FENCE PERMIT HAS COMPLIED WITH THE LEGAL REQUIREMENTS AS PROVIDED FOR THE LOCAL ORDINANCES AS LAWS.

F. COMPLIANCE BARANGAY CLEARANCE REFERS TO THE FACT THAT THE APPLICANT HAS NOT VIOLATED ANY LAW OR ORDINANCE IMPLEMENTED BY THE DULY CONSTITUTED AUTHORITIES, IT IS EQUIVALENT TO "CERTIFICATION OF GOOD MORAL CHARACTER"

G. CERTIFICATION OF ECONOMIC STATUS REFERS TO THE ECONOMIC CONDITION OF A PERSON SO AS TO AVOID OF ANY FAVOR, UPON CERTIFICATION BY THE PUNONG BARANGAY.

H. CERTIFICATION OF CIVIL STATUS REFERS TO THE CIVIL STATUS OF A PERSON IN ANY OF THE FOLLOWING CONDITIONS MARRIED, SINGLE, WIDOW, WIDOWER, SEPARATED IN FACT, SEPARATED BY LAW.

I. CERTIFICATION OF THE PERSONAL IDENTITY-REFERS TO THE IDENTITY OF A PERSON IN ANY OF THE FOLLOWING CONDITIONS-GENEALOGY, PATERNITY, DEAD, MISSING, UNKNOWN, BAD RECORD, GOOD RECORD, REPUTATION, HONOR AND ANY CONDITION WHICH POINTS A PERSON'S IDENTITY.

J. CERTIFICATION OF FACT REFERS TO THE VERACITY OF THE CERTAIN FACT DULY CERTIFIED BY THE PUNONG BARANGAY AS TRUE AND CORRECT.

K. CERTIFICATE OF REGULATION REFERS TO THE EXISTENCE OF BARANGAY ORDINANCE, RULES OR REGULATIONS WHICH SHOULD BE OBSERVED OR COMPLIED WITH BY THE AFFECTED PARTY.

L. CERTIFICATION OF COMPLIANCE REFERS TO ANY CERTIFICATION WHICH IS REQUIRED BY THE HIGHER AUTHORITY TO BE DULY CONFIRMED BY THE PUNONG BARANGAY BEFORE THE HIGHER AUTHORITY SHALL ACT ANY MATTER PENDING AT THIS OFFICE

SECTION 4. BARANGAY CLEARANCE FEES; A. SARI SARI'S STORE: P 100.00 B. DRIVER'S LICENSE APPLICATION: P 50.00 C. LOAN APPLICATION: P 50.00 D. LOCAL EMPLOYMENT APPLICATION: P 50.00 E. POLICE CLEARANCE APPLICATION: P 50.00 F. ELECTRIC CONNECTION APPLICATION: P 50.00 G. WATER CONNECTION APPLICATION: P 50.00 H. INTERNET CONNECTION APPLICATION: P 50.00 I. COMMERCIAL STORE: P 200.00 J. VEHICLE SERVICE CENTER/TYER/VULCANIZING: P 100.00 K. WAREHOUSE: P 500.00 L. SPACE RENTAL/APARTMENT: P 100.00/DOOR M. CONSTRUCTION FIRM: P 500.00 N. GASOLINE STATION: P 500.00 O. INTERNET CAFE'S: P 100.00 P. COMPUTER SHOP: P 100.00 Q. JUNK SHOP: P 500.00 R. OTHER CLEARANCES NOT MENTIONED: P 50.00

SECTION 5. BARANGAY CERTIFICATION BARANGAY PERMITS AND AGREEMENT OF SALE FEES ARE THE FOLLOWING SHALL BE; A. CERTIFICATION OF RESIDENCY/PERSONAL IDENTITY: P 0.00 B. CERTIFICATION OF ECONOMIC STATUS/INDEGENCE: P 0.00 C. CERTIFICATION OF COMPLIANCE: P 0.00 D. AGREEMENT/

DEED OF SALE AND SIMILAR DOCUMENTS: P 100.00 E. BUILDING PERMIT: P 100.00 F. FENCING PERMIT: P 100.00

SECTION 6. CHARGES AND RENTALS FOR THE USE OF THE BARANGAY FACILITIES

SUCH AS; A. USE OF BASKETBALL COURTS BY PRIVATE ORGANIZATION AND OUTSIDERS; I. WHOLE DAY AND WHOLE NIGHT W/ ELECTRICITY USE: P 700.00 II. NIGHT TIME: P 200.00/2 HRS

SECTION 7. EXEMPTION THE FOLLOWING PERSON'S OR INDIVIDUALS SHALL BE EXEMPTED FROM PAYMENT OF BARANGAY CLEARANCE AND CERTIFICATION. A. SENIOR CITIZEN B. PERSON WHO REQUESTED FOR MEDICAL, HOSPITALIZATION, BURIAL ASSISTANCE AND FINANCIAL ASSISTANCE C. INDIGENT INDIVIDUALS RESIDENT OF BARANGAY SAN ISIDRO, LILIW, LAGUNA D. FIRST JOB SEEKER.

SECTION 8. CONDITION PRECEDENT THE ISSUANCE OF THE FOREGOING BARANGAY CLEARANCE SHALL USED AS A CONDITION PRECEDENT PRIOR TO THE ISSUANCE OF LICENSES, PERMITS, OR OTHER PURPOSED SOUGHT BY THE APPLICANT.

SECTION 9. STEP THE FOLLOWING SHALL BE THE STEPS IN THE ISSUANCE OF THE BARANGAY CLEARANCE; A. ORAL MANIFESTATION OF INTENT TO THE PUNONG BARANGAY FOR HIM TO DETERMINE WHAT KIND OF BARANGAY CLEARANCE IS TO BE ISSUED DEPENDING ON THE KIND PURPOSED, AS ENUMERATED ABOVE. B. THE PUNONG BARANGAY SHALL MOBILIZE HIS ELECTIVE OR APPOINTIVE OFFICIALS CONCERNED TO VERIFY AS TO THE AUTHORITY OF THE PURPOSE OF APPLICANT. C. THE CONCERNED BARANGAY OFFICIALS SHALL CONDUCT RESEARCH OR OCULAR INSPECTION TO PROVE THE CERTAINTY OR VERACITY OF A CERTAIN MATTER. FACT AND REPORT THE SAME TO PUNONG BARANGAY. D. THE PUNONG BARANGAY SHALL DIRECT THE APPLICANT TO PAY TO THE BARANGAY TREASURER THE PRESCRIBED FEE. E. THE BARANGAY TREASURER SHALL ISSUE A RECEIPT AS PROOF OF PAYMENT. F. THE BARANGAY SECRETARY SHALL PREPARED THE BARANGAY CLEARANCE AND ATTACH THEREIN THE RECEIPT FOR SIGNATURE OF THE PUNONG BARANGAY. G. THE PUNONG BARANGAY SHALL SIGN THE CLEARANCES AND CERTIFICATIONS,

SECTION 10. GROUNDS FOR NON-ISSUANCE ANY OF THE FOLLOWING ARE THE GROUNDS FOR NON-ISSUANCE OF THE BARANGAY CLEARANCE/CERTIFICATION; A. PREVIOUS VIOLATION OF ANY ORDINANCE OR REGULATIONS RELATED TO THE GRANTING OF CLEARANCE OR PERMITS; B. VIOLATIONS OF ANY PRESCRIBED ZONING, SAFETY AND HEALTH REGULATIONS AND OTHER REQUIREMENTS. C. UNSETTLED TAX OBLIGATIONS, DEBTS OR LIABILITIES TO THE BARANGAY GOVERNMENT UNDER ANY LAW OR REGULATION D. INELIGIBILITY UNDER ANY PROVISION OF LAW OR REGULATION

ESTABLISH OR OPERATE BUSINESS APPLIED FOR; E. ABUSE OF PRIVILEGE TO DO BUSINESS OR PURSUE AN ACTIVITY TO THE INJURY OF PUBLIC MORALS AND PEACE; F. WHEN THE PLACE OF BUSINESS BECOMES A NUISANCE OR IS ALLOWED TO BE USED BY THIS ORDERLY CHARACTERS, CRIMINALS OR WOMEN OF ILL-REPUTE; G. NON-PAYMENTS OF FINES, NON-COMPLIANCE TO THE SERVICES IMPOSE AS A PENALTY FOR VIOLATING THE REVENUE OR REGULATORY BARANGAY ORDINANCE. H. NON APPEARANCE OF AN INDIVIDUAL TO A SUMMON CALLED BY THE PUNONG BARANGAY OR THE LUPON TAGAPAMAYAPA FOR AMICABLE SETTLEMENT FOR A CERTAIN COMPLAINT FILLED AGAINST HIM/HER BY A COMPLAINANT.

SECTION 11. VALIDITY OF CLEARANCES AND CERTIFICATIONS - THE VALIDITY SHALL BE 6 MONTHS AND SHALL ONLY BE USED FOR THE PURPOSE/S THE CLEARANCE AND CERTIFICATION.

SECTION 12. EFFECTIVE THIS ORDINANCE SHALL BE EFFECTIVE UPON THE APPROVAL OF THE SANGGUNIANG BAYAN.

Would you like any additional information regarding the signatories or the approval details of this ordinance?